

ALABAMA JUSTICE INFORMATION COMMISSION  
ADMINISTRATIVE CODECHAPTER 265-X-10  
CRIME VICTIMS COMPENSATION COMMISSION ACCESS

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**265-X-10-.01**      **Purpose.**

1) The purpose of this Rule is to provide the terms of access to and the use of state Incident Offense Reports (IO Reports) to the Alabama Crime Victims Compensation Commission (ACVCC).

**Author:** Maury Mitchell

**Statutory Authority:** Code of Ala. 1975, §41-9-594

**History: New Rule:** Published January 31, 2025; effective March 17, 2025.

**265-X-10-.02**      **Access.**

1) The ACVCC is authorized to access and receive an IO Report from any municipal, county or state law enforcement agency for the limited purpose of determining applicants' eligibility for crime victims' compensation benefits.

2) IO Reports or the information from an IO Report obtained by the ACVCC may only be viewed by staff of the Commission and may not be disseminated to the victim or any other entity.

3) A law enforcement agency may deny access to a complete IO Report or provide a report that redacts sensitive information when one or more of the following reasons apply:

a. When disclosure of the information would compromise criminal investigations, resulting in potential harm to innocent persons or infringe upon the constitutional rights of the any person.

b. When keeping all or a portion of a report confidential is necessary to protect witnesses and/or victims.

c. To protect the identities of law enforcement officers currently working undercover.

d. When disclosure would reveal the identity of informants.

e. When disclosure of the information would impede an agency's enforcement or detection efforts.

f. When disclosure would reveal investigatory techniques.

g. When disclosure would deprive a person of a right to a fair trial or an impartial adjudication.

4) IO Reports obtained by the ACVCC may only be released to a

grand jury subpoena pursuant to §15-23-5(4).

5) ALEA may provide ACVCC with state IO report information from the state IO repository upon signing an Agency Access Agreement. All information provided to ACVCC is subject to audit by the ALEA CJIS Division. Misuse of this information may be subject to administrative sanctions and criminal prosecution under §41-9-601 and §41-9-602.

**Author:** Maury Mitchell

**Statutory Authority:** Code of Ala. 1975, §41-9-594

**History: New Rule:** Published January 31, 2025; effective March 17, 2025.